EURONIMBA LIMITED

(the "Company")

WE, THE UNDERSIGNED, being the sole shareholder of the Company at the date when this resolution is deemed to be passed, pursuant to Article 95 of the Companies (Jersey) Law 1991 (as amended) and Article 18.1 of the articles of association of the Company (the "Articles"), HEREBY RESOLVE that the following resolution be and is hereby approved as a special resolution such resolution being deemed to be passed when signed by the member of the Company:

SPECIAL RESOLUTION

THAT the authorised share capital of the Company be and is hereby increased from US$300,000,000 divided into 30,000,000 shares of US$10.00 each by an additional US$20,000,000 divided into 2,000,000 shares of US$10.00 each. To give effect to the foregoing, and to implement certain other amendments to the articles of association of the Company, the existing memorandum of association and articles of association of the Company be replaced in their entirety with the memorandum of association and articles of association attached to this resolution.

.....

for and behalf of HPX Nimba Holdings Inc.

Dated: 1 December, 2020

COMPANIES (JERSEY) LAW 1991

MEMORANDUM OF ASSOCIATION

OF

EURONIMBA LIMITED

ICECAP

ICECAP Limited
icecapltd.com

COMPANIES (JERSEY) LAW 1991

COMPANY LIMITED BY SHARES

MEMORANDUM OF ASSOCIATION

- OF -

EURONIMBA LIMITED

1. The name of the company is **Euronimba Limited** (the "**Company**").

2. The Company is a private company.

3. The Company is a par value company.

4. The share capital of the Company is US$ 320,000,000 divided into 32,000,000 shares designated as ordinary shares with a par value of US$10.00 each.

5. The liability of a member of the Company is limited to the amount unpaid (if any) on such member's share or shares.

COMPANIES (JERSEY) LAW 1991

ARTICLES OF ASSOCIATION

OF

EURONIMBA LIMITED

ICECAP

ICECAP Limited
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ARTICLES OF ASSOCIATION

OF

EURONIMBA LIMITED (the "Company")

1. **DEFINITIONS AND INTERPRETATION**

(1) In these Articles, unless the context requires otherwise:

"**address**" means in relation to an electronic communication any number or address used for the purpose of such communication;

"**these Articles**" means these Articles of Association in their present form or as from time to time altered or amended and "Article" shall refer to an Article of these Articles;

"**bankruptcy**" has the meaning given to that term in the Interpretation Law;

"**clear days**" in relation to a period of notice, means that period excluding the day on which the notice is served (or deemed to be served) and the day for which it is given or on which it takes effect (or is deemed to take effect);

"**debenture**" includes debenture stock;

"**Director**" means the person occupying the position of director, by whatever name called, for the time being of the Company and appointed in accordance with the Law or these Articles which shall also include, where the context permits, alternate directors;

"**electronic**" has the meaning given to that term in the Electronic Communications (Jersey) Law 2000;

"**electronic communication**" has the meaning given to that term in the Electronic Communications (Jersey) Law 2000, and for the avoidance of doubt includes a communication of information transmitted by electronic mail or facsimile;

"**electronic record**" has the meaning given to that term in the Electronic Communications (Jersey) Law 2000;

"**Interpretation Law**" means the Interpretation (Jersey) Law 1954;

"**Law**" means the Companies (Jersey) Law 1991;

"**member**" or "**holder**" means a person whose name is entered on the Register from time to time as the holder of shares in the Company;

"**Memorandum**" means the Memorandum of Association of the Company as amended from time to time;

"**month**" means a calendar month;

"**Office**" means the registered office of the Company required to be maintained under the Law;

"**ordinary resolution**" means a resolution passed by a simple majority of the votes cast by, or on behalf of the members present in person and voting at a duly constituted general meeting. This expression also includes a written resolution signed by the required majority of the members who, at the date when the resolution is deemed to be passed, would be entitled to vote on the resolution if it were proposed at a meeting;

"**paid up**" includes credited as paid up;

"**present in person**" in relation to general meetings of the Company and to meetings of the holders of any class of shares, shall include present by proxy or by attorney or, in the case of a corporate shareholder, by authorised representative;

"**Register**" means the register of members required to be kept by Article 41 of the Law;

"**Seal**" means (where the context applies) the common, branch or securities seal, if any, of the Company;

"**Secretary**" means and includes any person appointed to perform the duties of secretary to the Company and includes an assistant or deputy, joint or temporary secretary;

"**special resolution**" has the meaning as set out in the Law. This expression also includes a written resolution signed by the required majority of the members who, at the date when the resolution is deemed to be passed, would be entitled to vote on the resolution if it were proposed at a meeting.

(2) In these Articles:

(a) words importing the singular number shall include the plural and vice versa;

(b) words importing one gender only shall be construed as including any other gender;

(c) the word "may" shall be construed as permissive and the word "shall" shall be construed as imperative;

(d) the word "signed" shall include a signature or representation of a signature affixed by mechanical, electronic or other means;

(e) the words "in writing" and "written" shall include written, printed, telegraphic transmission, facsimile, photographed, electronically transmitted or any other mode of representing or producing words in a visible form;

(f) any reference to the word "person" shall include an individual, a firm, a company, a partnership (whether or not having separate legal personality), an incorporated or unincorporated body, corporation or association, a trust, a body corporate, a state or government agency or an authority or other body or entity of any kind and to such person's successors;

(g) any reference to any statutory provisions shall be deemed to include a reference to any subordinate legislation, amendment, modification, extension or re-enactment of it from time to time in force, any analogous provision, rule under any applicable law or any substitution for any legislation that is repealed;

(h) any reference to any agreement or document (including reference to these Articles) shall be deemed to include reference to such agreement or document as from time to time varied, amended, supplemented or replaced;

(i) grammatical variations of words to which definitions are assigned shall be construed in accordance with the definitions;

(j) the headings are intended for ease of reference only and shall not affect the construction or interpretation of any provision to which they refer in these Articles;

(k) where a word or phrase is given a particular meaning or interpretation other forms of that word or phrase have corresponding meanings or interpretation;

(l) all references to time are to be calculated (unless an alternative jurisdiction is specified) by reference to time in the place where the Company's Office is situated;

(m) the expression "including" and its derivatives (such as "include" and "includes") means "including without limitation"; and

(n) save as defined in these Articles or in the Memorandum and unless the context otherwise requires words or expressions contained in these Articles shall bear the same meaning as in the Law and in the Interpretation Law.

(3) The regulations constituting the Standard Table in the Companies (Standard Table) (Jersey) Order 1992 shall be excluded from application in its entirety to the Company.

2. SHARE CAPITAL

(1) The share capital of the Company is as specified in the Memorandum and the shares of the Company shall have the rights and be subject to the restrictions set out in these Articles.

(2) Without prejudice to any special rights for the time being conferred on the holders of any shares or class of shares, (which special rights shall not be varied or abrogated except with such consent or sanction as is hereinafter provided and subject to the provisions of the Law) any share or class of shares in the share capital of the Company may be issued with such preferred, deferred or other special rights or such restrictions whether in regard to dividend, return of capital, voting or otherwise as the Company may from time to time by special resolution determine.

(3) The Company may not issue fractions of any share or class of share.

(4) Where the Company allots shares at a premium, the aggregate amount of all premiums on shares allotted as and when the premiums are paid up, shall be transferred to an account called the share premium account which may be applied for any of the purposes permitted by and under the provisions of the Law.

(5) Except as required by Law, no person shall be recognised by the Company as holding any share upon any trust and (except as otherwise provided by the Articles or by the Law) the Company shall not be bound by or recognise any interest in any share except an absolute right to the entirety thereof in the registered holder.

(6) The Company may alter its share capital as stated in its Memorandum (or herein) in any of the ways permitted or provided for under the Law.

(7) Subject to the provisions of the Law, the Company may reduce its share capital in any way.

3. **MODIFICATION OF RIGHTS**

(1) Subject to the provisions of the Law, whenever the share capital of the Company is divided into different classes of shares the special rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may be varied or abrogated at any time with the consent in writing of the holders of two-thirds of the issued shares of that class or with the sanction of a special resolution passed at a separate meeting of the holders of the shares of that class. To every such separate meeting all the provisions of these Articles, relating to general meetings of the Company or to the proceedings thereat, shall mutatis mutandis apply except that the necessary quorum shall be persons holding or representing by proxy at least one-third in nominal value of the issued shares of that class (but so that if at any adjourned meeting of such holders a quorum as above defined is not present one person present holding shares of that class or his proxy shall be a quorum) and that the holders of shares of that class or their duly appointed proxies shall on a show of hands have one vote and on a poll have one vote in respect of every share of that class held by them respectively.

(2) The special rights conferred upon the holders of any shares or class of shares issued with preferred, deferred or other special rights shall (unless otherwise expressly provided by the conditions of issue of such shares) be deemed not to be varied by the creation or issue of further shares ranking pari passu therewith.

4. **SHARES**

(1) The shares shall be at the disposal of the Directors who may, subject to the provisions of the Law, allot, grant options over or otherwise deal with or dispose of them to such persons at such times and generally on such terms and conditions as they think proper. Save as provided in the Law, each share in the Company shall be distinguished by its appropriate number.

(2) The Company may pay a commission to a person in consideration of his subscribing or agreeing to subscribe (whether absolutely or conditionally) for shares in the Company or procuring or agreeing to procure subscriptions (whether absolute or conditional) for shares in the Company.

(3) The Company shall keep a Register in accordance with the provisions of the Law.

(4) Unless the conditions of allotment shall otherwise provide, every person whose name is entered as a member in the Register shall be entitled:

(a) without payment, to a certificate for all of his shares of each class either under the Seal or signed by two Directors or a Director and the Secretary or as the Directors shall determine and upon a member transferring part of his holding of shares, of any class, to a certificate for the balance of such holding; and

(b) upon payment of such sum as the Directors may determine for every certificate after the first, to several certificates each for one or more of the member's shares of any class;

specifying the number, class and distinguishing number or numbers (if any) of the share or shares held by him and the amount paid up.

(5) Where two or more persons are registered as the holders of any share they shall be deemed to hold the same as joint tenants, with the benefit of survivorship, subject to the following provisions:

(a) the Company shall not be bound to register more than four persons as the joint holders of any share;

(b) the joint holders of any share shall be liable, severally as well as jointly, in respect of all payments to be made in respect of such share;

(c) any one of such joint holders may give a good receipt for any dividend, bonus or return of capital payable to such joint holders; and

(d) only the senior of the joint holders of a share shall be entitled to delivery of the certificate relating to a jointly held share or to receive notices from the Company and notice given to the senior joint holder shall be deemed notice to all the joint holders and the first named joint holder in the Register shall be deemed to be the senior joint holder for the purpose of these Articles.

(6) Unless the conditions of allotment shall otherwise provide, every certificate shall be completed and be ready for delivery within two months after the allotment of the relevant shares or the date on which a transfer is lodged with the Company.

(7) If a share certificate be worn out, defaced, lost or destroyed a duplicate certificate may be issued on payment of such fees and expenses as the Directors may determine in investigating the evidence and issuing replacement share certificates and on such terms (if any) as to evidence and indemnity as the Directors think fit and (in the case of defacement or wearing out) on delivery of the old certificate.

(8) The Company may from time to time subject to the provisions of the Law and to any rights for the time being conferred on the members holding a class of shares:

(a) issue, or convert existing non-redeemable shares (whether issued or not) into, shares which are to be redeemed or are liable to be redeemed either in accordance with their terms or at the option of the Company or the holder thereof; or

(b) purchase all or any shares (including any class of shares).

On a redemption or purchase of a share a payment may be made in cash or in specie or by combinations of cash and in specie. The Company may hold shares acquired by way of redemption or purchase in treasury as permitted by the Law. On the date of redemption or purchase of a share, that share shall be treated as cancelled or become a treasury share where permitted by resolution and the member shall cease to be entitled to any rights in respect of that share.

5. **LIEN**

(1) The Company shall have a first and paramount lien on every share (not being a fully paid share) for all moneys (whether presently payable or not) called or payable at a fixed time in respect of that share and the Company shall also have a first and paramount lien on all shares (other than fully paid shares) standing registered in the name of a member (whether solely or jointly with others) for all moneys presently payable by him or his estate (whether solely or jointly with others) to the Company but the Directors may at any time declare any shares to be wholly or in part exempt from the provisions of this Article. The Company's lien (if any) on a share shall extend to any amount payable in respect of it or any dividends or other monies payable thereon.

(2) The Company may sell, in such manner as the Directors think fit, any shares on which the Company has a lien but no sale shall be made unless (i) some part of the sum in respect of which the lien exists is presently payable and (ii) until the expiration of fourteen clear days after a notice in writing stating and demanding payment of the amount in respect of which the lien exists as is presently payable has been given to the member or the person entitled by reason of his death, incapacity or bankruptcy to the share **PROVIDED THAT** such notice shall contain a statement that if such notice is not complied with then the share may be sold.

(3) The net proceeds of sale, after the payment of any costs of such sale, shall be applied in payment of such part of the amount in respect of which the lien exists as is presently payable and any residue shall (subject to a like lien for sums not presently payable as existed upon the share prior to the sale), upon delivery to the Company for cancellation of the certificate for the share sold, be paid to the person entitled to the share at the date of the sale. In order to effect any sale the Directors may authorise a person to execute an instrument of transfer of the share sold to the purchaser. The purchaser shall be registered as the holder of the share and the name of the member removed from the Register and the purchaser shall not be bound to see the application of the purchase money nor shall his title to the share be affected by any irregularity or invalidity in the proceedings in reference to the sale. The Company and the Directors shall incur no personal liability to the member concerned in respect of such sale.

6. **CALLS ON SHARES**

(1) Subject to the provisions in these Articles and the terms of allotment the Directors may make calls upon the members in respect of any moneys unpaid on their shares (whether in respect of nominal value or premium) and each member shall (subject to receiving at least fourteen clear days' notice specifying when and where payment is to be made) pay to the Company, as required by the notice, the amount called on his shares. A call may be required to be paid by instalments. A call may, before receipt by the Company of any sum due thereunder, be revoked in whole or part and payment of a call may be postponed in whole or part. A person upon whom a call is made shall remain liable for calls made upon him notwithstanding the subsequent transfer of the shares in respect whereof the call was made.

(2) A call shall be deemed to have been made at the time when the resolution of the Directors authorising such call was passed and proof of the resolution shall be sufficient evidence of the call having been made. A call shall also be deemed to have been made by the Company on the holder for immediate payment on the bankruptcy of the holder.

(3) The joint holders of a share shall be jointly and severally liable to pay all calls and other moneys due in respect thereof.

(4) If a sum called in respect of a share is not paid before or on the day appointed for payment thereof, the person from whom the sum is due and payable shall pay interest, at a rate fixed by the Directors, upon the unpaid sum from the day appointed for the payment thereof to the time of the actual payment, however the Directors shall be at liberty to waive the payment of that interest wholly or in part.

(5) Any sum or premium which by the terms of allotment of a share is made payable upon allotment or at any fixed date shall for all the purposes of these Articles (save as herein otherwise expressly provided) be deemed to be a call duly made and payable on the date fixed for payment and in case of non-payment the provisions of these Articles as to payment of interest, expenses, forfeiture and all other relevant provisions of these Articles shall apply as if the same were a call duly made and notified as hereby provided.

(6) The provisions in these Articles as to payment of interest shall apply in the case of non-payment of any sum which by the terms of issue of a share becomes payable at a fixed date whether on account of the amount of the share or by way of premium as if the same had become payable by virtue of a call duly made and notified.

(7) The Company may, if the Directors think fit, receive from any member willing to advance the same all or any part of the money uncalled and unpaid upon any shares held by him beyond the sums actually called up thereon as a payment in advance of calls. Any such payment in advance of calls shall extinguish, so far as the same shall extend, the liability, upon the shares in respect of which it is advanced. The Company may, upon all or any of the moneys so advanced, (until the same would but for such advance become presently payable) pay interest at such rate (not exceeding without the sanction of the Company in general meeting ten per centum per annum) as the Directors shall think fit **PROVIDED THAT** in the event that sums are paid up in advance of any calls, the member in respect of such shares upon which an advance is made, shall not be entitled to any dividend until the same would but for such advance become presently payable.

7. **FORFEITURE AND SURRENDER OF SHARES**

(1) If a member fails to pay any call or instalment of a call on or before the day appointed for payment thereof, the Company may at any time thereafter during such time as any part of such call or instalment remains unpaid, serve a notice in writing on him requiring payment of so much of the call or instalment as is unpaid together with any interest which may have accrued and any expenses that may have been incurred by reason of such non-payment.

(2) The notice shall name a further day (not earlier than the expiration of fourteen clear days from the date of the notice) on or before which the payment required by the notice is to be made and the place where payment is to be made and shall clearly state that in the event of non-payment on or before the day and at the place appointed, the shares in respect of which the call or instalment is unpaid will be liable to be forfeited.

(3) If the requirements of any such notice as aforesaid are not complied with, any share in respect of which the notice has been given may, at any time thereafter, before the payment required by the notice has been made either:

(a) be forfeited by a resolution of the Directors to that effect and the forfeiture shall include all dividends or other moneys payable in respect of the forfeited share and not paid before the forfeiture; or

(b) be accepted by the Company as surrendered by the member thereof instead of causing the share to be forfeited.

(4) When any share has been forfeited or surrendered in accordance with these Articles, notice of the forfeiture or surrender shall be given to the member or the person entitled to the share by transmission or entitled to the share following the death, incapacity or bankruptcy of the member **PROVIDED THAT** the forfeiture or surrender shall not be invalidated by any omission or neglect to give such notice.

(5) Any share forfeited or surrendered, in accordance with these Articles, shall become the property of the Company and may be re-allotted, held as treasury shares, sold or otherwise disposed of on such terms and in such manner as the Directors think fit and notwithstanding any such forfeiture or surrender as aforesaid, the Directors may at any time before the forfeited or surrendered share has been disposed of permit the share so forfeited or surrendered to be redeemed upon the terms of payment of all calls and interest due upon and expenses incurred in respect of the share and upon such further terms (if any) as they shall think fit. If the Directors think fit, any time before a re-allotment, sale or disposal, the Directors may cancel such forfeiture or surrender.

(6) A record in the minute book of the Company, to the effect that a share has been duly forfeited or surrendered in pursuance of these Articles and stating the date when it was forfeited or surrendered shall as against all persons claiming to be entitled to the share be conclusive evidence of the facts therein stated and such record together with a certificate signed by a Director stating that the share has been forfeited or surrendered and, subject to the execution of an instrument of transfer, if necessary, delivered to the purchaser or allottee thereof shall constitute a good title to the share and the new holder thereof shall be discharged from all calls made prior to such purchase or allotment and shall not be bound to see the application of the purchase money nor shall his title to the share be affected by any past omission or irregularity relating to or connected with the proceedings in reference to the forfeiture, surrender, re-allotment, sale or other disposal of the share.

(7) A person whose shares have been forfeited or surrendered shall cease to be a member in respect of the forfeited or surrendered shares and the name of the member concerned shall no longer be included in the Register. The person whose shares have been forfeited or surrendered shall deliver to the Company for cancellation the share certificates in respect of the forfeited or surrendered shares but shall, notwithstanding the forfeiture or surrender, remain liable to pay to the Company all moneys which at the date of the forfeiture or surrender were presently payable to the Company by him in respect of the shares together with all expenses incurred by reason of such non-payment and interest at the rate at which interest was payable on those moneys before such forfeiture or surrender or at such rate as the

Directors shall determine if no interest was payable but not exceeding ten per cent per annum from the date of forfeiture or surrender until payment. The Directors may waive payment in whole or in part or enforce payment without any allowance for the value of the shares at the time of forfeiture or surrender or for any consideration received in their disposal.

(8) The provisions of these Articles as to forfeiture or surrender shall apply in the case of non-payment of any sum which by the terms of issue of a share becomes payable at a fixed time whether on account of the amount of the share or by way of premium as if the same had been payable by virtue of a call duly made and notified.

8. **TRANSFER AND TRANSMISSION OF SHARES**

(1) Save as otherwise permitted under the provisions of the Law, all transfers of shares shall be effected using an instrument of transfer. The instrument of transfer of any fully paid share shall, unless the Directors otherwise resolve, be signed by the transferor alone and in the case of an unpaid or partly paid share the instrument of transfer shall be signed by the transferor and by the transferee. The transferor shall be deemed to remain the holder of such share until the name of the transferee is entered in the Register in respect thereof.

(2) The instrument of transfer of any share shall be in writing in the usual common form or any form approved by the Directors and shall specify the full name and address of the transferee.

(3) The holder of any shares so transferred shall be liable for any amount unpaid on such shares at the date of transfer and shall have the rights to which the transferor of the shares had on the date of transfer.

(4) The Directors may in their absolute discretion (and without assigning any reason) refuse to register any transfer of any share (whether fully paid or not or whether or not the Company has a lien over it) without giving any reason for their refusal. Without prejudice to the generality of the foregoing, the Directors may refuse to register a transfer unless the instrument of transfer:

(a) is lodged at the Office or at such other place as the Directors may appoint and is accompanied by the certificate for the shares to which it relates and such other evidence as the Directors may reasonably require to show the right of the transferor to make the transfer;

(b) is in respect of only one class of shares; and

(c) is in favour of not more than four transferees.

(5) In respect of any allotment of any shares, the Directors shall have the same rights (as referred to above) to decline to approve registration of any renouncee of an allottee as if the application to allot and the renunciation were a transfer of a share hereunder.

(6) If the Directors refuse to register any transfer of any share they shall give notice thereof to the proposed transferor and transferee within two months after the date on which the instrument of transfer of such share is lodged with the Company.

(7) The registration of transfers of shares or of transfers of any class of shares may be suspended at such times and for such periods as the Directors may determine.

(8) Unless the Directors resolve otherwise, no fee shall be charged for the registration of any instrument of transfer or other document relating to or affecting the title to any share.

(9) The Company shall be entitled to retain any instrument of transfer of any share which is registered, but any instrument of transfer of any share which the Directors refuse to register shall be returned to the person lodging it when notice of the refusal is given.

(10) If a member dies, the survivor or survivors, where the deceased was a joint holder, and the executors, administrators or other legal personal representatives of the deceased, where the deceased was a sole or only surviving holder, shall be the only persons recognised by the Company as having any title to the interest of the deceased in the shares, but nothing contained in these Articles shall release the estate of a deceased member from any liability in respect of any share which had been jointly held by him.

(11) A minor or an interdict may not become a member of the Company unless the shares were transmitted to him on the death of a member.

(12) Any guardian of a minor member and any curator or guardian or other legal representative appointed by the Royal Court of Jersey or other person appointed by a court of competent jurisdiction to administer to the affairs of any member of unsound mind, and any person becoming entitled to a share in consequence of the death or bankruptcy of a member or otherwise by operation of law may, upon such evidence being produced as the Directors may properly require, elect either to become the registered holder of the share or to have some person nominated by him registered as the holder thereof. If he elects to become the holder, he shall give a signed notice to the Company to that effect together with such evidence of entitlement as may be required by the Directors. If he elects to have another person registered he shall execute an instrument of transfer of the share to that person. All the limitations, restrictions and provisions in these Articles relating to the transfer of shares shall apply to the notice or instrument of

transfer as if it were an instrument of transfer executed by the member and as if the member had been a person of full age or not of unsound mind or as if the death or bankruptcy of the member had not occurred.

(13) The Directors may require a person registered as a member by reason of the death, incapacity or bankruptcy of a member or otherwise by operation of law or a nominee on their behalf to indemnify the Company and the Directors against any loss or damages suffered by the Company as a result of that registration.

(14) A person becoming entitled to a share in consequence of the death, incapacity or bankruptcy of a member or otherwise by operation of law shall have the rights (and be subject to the restrictions) to which he would be entitled if he were the registered holder of the share, except that he shall not, before being registered as the holder thereof, be entitled in respect of the share to vote at any general meeting of the Company or at any separate meeting of the holders of any class of shares in the Company. The Company shall be entitled to recognise any person becoming entitled to a share in consequence of the death, incapacity or bankruptcy of a member or otherwise by operation of law.

9. GENERAL MEETINGS

(1) The Company is not required to hold an annual general meeting.

(2) All general meetings of the company shall be called **"Extraordinary General Meetings"**.

(3) The Directors may whenever they think fit convene an Extraordinary General Meeting and subject to the Law, Extraordinary General Meetings shall also be convened on a requisition, made in accordance with the Law, in writing and signed by members holding in the aggregate not less than one-tenth of the total voting rights of the members who have a right to vote at the meeting requisitioned. If at any time there are not within the Island of Jersey sufficient Directors capable of acting to form a quorum any Director or any member of the Company may convene an Extraordinary General Meeting in the same manner as nearly as possible as that in which meetings may be convened by the Directors.

(4) At any Extraordinary General Meeting called pursuant to a requisition, unless such meeting is called by the Directors, no business other than that stated in the requisition as the object of the meeting shall be transacted.

(5) Save as provided in these Articles, all the provisions of these Articles and the Law relating to general meetings of the Company and the proceedings at such meetings shall apply, mutatis mutandis, to every class meeting. At any class meeting, the holders of shares of the relevant class, shall on a poll, have one vote in respect of each share of that class held by each of them.

(6) Subject to the Law and Article 9(3), where notice has been given of a general meeting, the Directors shall still be entitled to propose any ordinary resolution to be included at the general meeting notwithstanding that it was not contained in the notice convening the general meeting.

10. PROCEEDINGS AT GENERAL MEETINGS

(1) For any general meeting fourteen clear days' notice at least specifying the place, the day, the time of the meeting, the technology to be used to facilitate a meeting to be held in two or more places (if applicable), the general nature of the business to be transacted (including the wording for a proposed special resolution (if any)) shall be given in the manner hereinafter mentioned or in such other manner (if any) as may be prescribed by the Company in general meeting to such persons as are under these Articles entitled to receive such notices from the Company including all members, the Directors and the auditors (if any).

(2) In the case of any general meeting with the consent of a majority in number of the members entitled to attend and vote thereat such majority together holding not less than ninety five per cent of the total voting rights which give the right to attend and vote thereat, such meeting may be convened on shorter notice than fourteen clear days' notice.

(3) Notice of every general meeting shall be given in accordance with the provisions of Article 24(6) hereof, but the accidental omission to give notice of a general meeting to, or the non-receipt of notice of a general meeting by, any person entitled to receive notice shall not invalidate the proceedings at that meeting.

(4) In every notice calling a general meeting of the Company there shall appear, with reasonable prominence, a statement that a member entitled to attend and vote is entitled to appoint a proxy or where it is allowed one or more proxies to attend and vote instead of the member and it is not a requirement that the proxy be a member.

(5) No business shall be transacted at any general meeting, except the adjournment of the meeting, unless a quorum of members is present at the time when the meeting proceeds to business. Two members present in person entitled to vote upon the business to be transacted, each being a member shall be a quorum **PROVIDED THAT** if at any time the Company has only one member, such single member present in person shall constitute a quorum.

(6) Any member present in person may participate in a general meeting by means of a conference telephone, video or similar communications equipment whereby all the other members participating in the general meeting can hear and speak to each other throughout the meeting and the members present in person

participating in this manner shall be deemed to be present in person at such meeting for all the purposes of these Articles notwithstanding that all the members participating are not present together in the same place and the general meeting shall be deemed to be held.

(7) If within half-an-hour from the time appointed for the meeting a quorum is not present or if at any time during the meeting it becomes inquorate the meeting shall stand adjourned to the place, time and day in the next week to be appointed by the chairman or if no place, time and day is so appointed to the same day in the next week at the same time and place and if at the adjourned meeting a quorum as above defined is not present within half-an-hour from the time appointed for the meeting one member present in person shall constitute a quorum **PROVIDED THAT** if a quorum is not present at a meeting requisitioned by the members then such meeting shall be cancelled.

(8) The chairman (if any) of the Directors shall preside as chairman at every general meeting of the Company or if there is no such chairman or if he shall not be present within fifteen minutes after the time appointed for the holding of the meeting or is unwilling to act the Directors present acting by majority shall elect one of their number to be chairman of the meeting.

(9) If at any general meeting no Director is willing to act as chairman or if no Director is present within fifteen minutes after the time appointed for holding the meeting the members present, acting by majority in number, shall choose one of their number to be chairman of the meeting.

(10) A Director who is not a member or a representative of the auditor (if any) shall be entitled to receive notice and to attend and speak at any general meeting or meeting held for members holding a class of shares.

(11) The chairman may with the consent of any general meeting at which a quorum is present (and for any other legitimate reason where he considers it appropriate in the circumstances without consent) adjourn the meeting from time to time and from place to place but no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place. When a general meeting is adjourned for fourteen clear days or more, seven clear days notice of the adjourned meeting shall be given as in the case of an original meeting. Save as aforesaid it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

(12) At any general meeting a resolution put to the vote of the meeting shall be decided on a show of hands unless a poll is (before or on the declaration of the result of the show of hands) decided upon by the chairman or demanded by at least two members present in person having the right to vote on the resolution or by any member or members present in person representing at least one-tenth of the total voting rights of all members present in person having a right to vote on the resolution and unless a poll is so demanded a declaration by the chairman that a resolution has on a show of hands been carried or carried unanimously or by a particular majority or lost and an entry to that effect in the minutes of the proceedings of the meeting shall be conclusive evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against such resolution.

(13) If a poll is duly demanded it shall be taken in such manner as the chairman directs and the result of the poll shall be deemed to be the resolution of the general meeting at which the poll was demanded.

(14) The chairman may appoint scrutineers (who need not be members) and set a day, time and place for announcing the vote results. If the meeting is held in more than one place with the aid of technology, scrutineers in each place may need to be appointed **PROVIDED THAT** if the chairman reasonably believes that the vote cannot be properly monitored and counted at that meeting, the chairman shall adjourn the holding of the vote to a day, time and place when the vote can be properly monitored and counted.

(15) In the case of an equality of votes whether on a show of hands or on a poll the chairman of the general meeting at which the show of hands takes place or at which the poll is demanded shall be entitled to a second or casting vote.

(16) A poll demanded on the election of a chairman or on a question of adjournment shall be taken forthwith. A poll demanded on any other resolution shall be taken at such time as the chairman of the general meeting directs.

(17) A demand for a poll shall not prevent the continuance of a general meeting for the transaction of any business other than the resolution on which a poll has been demanded.

(18) An ordinary resolution proposed at a general meeting may be amended by an ordinary resolution at that general meeting if:

(a) not less than forty eight hours before the meeting is to take place (or such later time as the chairman of the meeting may determine), written notice of the proposed amendment is given to the Company by a member entitled to vote at that general meeting; and

(b) the proposed amendment does not, in the reasonable opinion of the chairman of the meeting materially alter the scope of the original resolution.

(19) A special resolution proposed at a general meeting may be amended by an ordinary resolution at that general meeting but still to be passed as a special resolution if:

(a) the chairman of the general meeting proposes the amendment at the general meeting at which the resolutions is to be proposed; and

(b) the amendment does not go beyond what the chairman considers is necessary to correct a grammatical or other non-substantive error in the original resolution.

(20) Minutes of all resolutions and proceedings of any general meeting shall be entered into the minute books of the Company kept for that purpose and shall be available for inspection by any member or any Director during normal business hours without charge. Subject to the provisions of the Law, a member or Director may request a copy of any such minutes.

(21) Save as otherwise provided in the Law, anything which may be done at a general meeting of the Company may be done by a resolution in writing passed as an ordinary or special resolution accordingly, by the majority of members specified in this Article who at the date when the resolution is deemed to be passed, would be entitled to vote on the resolution if it were proposed at a general meeting and who (in the case of an ordinary resolution) comprises a majority of not less than 51 per cent of such members or (in the case of a special resolution) comprises a majority of not less than two thirds of such members. The majority of members needed to pass any such resolution may consist of several documents in the same form signed by one or more of the members or their attorneys and signature in the case of a corporate body which is a member shall be sufficient if made by a director thereof or its duly appointed authorised representative or attorney. A resolution in writing shall be deemed to be passed when the applicable majority of the members has signified agreement to the resolution.

(22) A member signifies agreement to a resolution in writing when the Company (or the Company's representative) receives from the member (or from someone acting on the member's behalf) a document sent or submitted in hard copy or electronic form or in such other manner as the Director's may determine or approve which:

(a) indicates the resolution to which it relates; and

(b) indicates agreement to the resolution.

(23) A member's agreement to a written resolution, once signified, may not be revoked.

(24) If at any time the Company has only one member, a decision of such single member of which a record in writing is provided to the Company in accordance with Article 95A of the Law shall be as valid and effectual as if it had been agreed by the Company in general meeting.

11. VOTES OF MEMBERS

(1) Subject to any special rights, restrictions or prohibitions as regards voting for the time being attached to any shares on a show of hands every member present in person shall have one vote. Where a person represents two or more members including itself, that person shall be entitled to a separate vote for each member.

(2) On a poll every member shall have one vote for each share of which he is the holder, unless the share carries special rights, restrictions or prohibitions.

(3) In the case of joint holders unless such joint holders shall have chosen one of their number to represent them and so notified the Company in writing the vote of the most senior who tenders a vote whether in person or by proxy shall be accepted to the exclusion of the votes of the other joint holders and for this purpose seniority shall be determined by the order in which the names stand in the Register or such other basis as the chairman (in his absolute discretion) considers appropriate.

(4) Where a member is of unsound mind his curator or guardian or other legal representative appointed by the Royal Court of Jersey or the person appointed by a court of competent jurisdiction to administer to his affairs may vote whether on a show of hands or on a poll and may on a poll vote by proxy. Evidence to the satisfaction of the Directors of the authority of such curator or other person may be required by the Directors.

(5) No member shall be entitled to vote, whether on a show of hands or a poll, at any general meeting unless all calls or other sums presently payable by him in respect of shares in the Company of which he is holder or one of the joint holders have been paid.

(6) A challenge may only be raised as to the validity of a person's right to vote at the general meeting or the adjourned general meeting at which the person seeks to exercise its right to vote. Any challenge shall be referred to the chairman whose decision shall be final and conclusive.

(7) On a poll votes may be given either personally or by proxy including for the avoidance of doubt authorised representatives or attorneys.

(8) The instrument appointing a proxy shall be in writing under the hand of the appointor or of his authorised representatives or attorney duly authorised in writing or if the appointor is a corporation

either under its common seal or under the hand of an officer or attorney so authorised. A proxy need not be a member of the Company.

(9) Subject to the Law, the instrument appointing a proxy and the power of attorney or other authority (if any) under which it is signed or a notarially certified copy of that power or authority shall be deposited at the Office or at such other place as is specified for that purpose by the notice convening the meeting not less than twenty four hours before the beginning of the period for holding the meeting or adjourned meeting at which the person named in the instrument proposes to vote. In the case of a poll not less than twenty four hours before the time appointed for taking the poll and in default the instrument of proxy shall not be treated as valid. In calculating the period of twenty four hours no account shall be taken of any part of a day that is not a working day as defined in the Law

(10) If the form of appointment of proxy is not delivered on time or in accordance with these Articles, it is invalid.

(11) An instrument appointing a proxy shall be in any usual common form or in any form of which the Directors shall approve.

(12) A member may by one or more instruments specifically identifying the number and, if applicable, the class of shares to which it relates and otherwise complying with these Articles, appoint different proxies in respect of different shares held by such member and who shall each have the right to attend, speak and vote at the general meeting for which he is appointed. Each proxy shall take effect in accordance with these Articles only in respect of such specified number of shares held by the member. Where a member is represented by more than one proxy, then on a show of hands the votes of the majority of the proxies shall be deemed to be the member's vote.

(13) A proxy duly appointed shall have the same voting rights at a meeting or adjourned meeting as the member would have had save where the instrument of proxy limits the rights. A member may attend and vote at a general meeting or adjourned meeting attended by his proxy and if the member votes on any resolution, any vote by his proxy on the same resolution, unless in respect of a different share shall be disregarded.

(14) The instrument appointing a proxy shall be deemed to confer authority to demand or join in demanding a poll.

(15) A vote given or act done in accordance with the terms of an instrument of proxy (or power of attorney or corporate representative) shall be valid notwithstanding the previous death or insanity of the appointor or revocation of the proxy or of the authority under which the proxy was executed or the transfer of the share in respect of which the proxy is given (or revocation of the power of attorney or corporate authority) unless notice in writing of such death, insanity, revocation or transfer as aforesaid shall have been received by the Company at the Office before the commencement of the meeting or adjourned meeting or poll at which the vote was given or the act was done.

12. CORPORATIONS AND OTHER LEGAL PERSONS ACTING BY REPRESENTATIVES AT MEETINGS

Any corporation or other legal person which is a member of the Company may by resolution of its directors or other governing body authorise such person or persons as it thinks fit to act as its representative at any general meeting of the Company or of any class of members of the Company and the person or persons so authorised shall be entitled on production of suitable evidence to the chairman (if required) to exercise the same powers on behalf of the corporation or other legal person which he represents as that corporation or other legal person could exercise if it were an individual member of the Company, **PROVIDED THAT** where the corporation or other legal person authorises more than one person and more than one of them purports to exercise the powers on behalf of the corporation or other legal person, if they purport to exercise the power in the same way the power is treated as exercised in that way and if they do not purport to exercise the power in the same way, the power is treated as not exercised.

13. NUMBER AND APPOINTMENT OF DIRECTORS

(1) Unless otherwise determined by ordinary resolution, the number of Directors (other than alternate Directors) shall not be subject to any maximum but shall be a minimum of one.

(2) The first Directors shall be appointed in writing by the subscriber(s) to the Memorandum or if more than one then all or a majority of them.

(3) A Director need not be a member of the Company.

(4) The Directors shall have power at any time and from time to time to appoint, subject to the provisions of the Law and Article 13(1), any person to be a Director either to fill a casual vacancy or as an additional Director.

(5) The Company may by ordinary resolution appoint any person to office as a Director. No appointment of a Director can cause the number of Directors to exceed the maximum (if any maximum is specified) and any such appointment shall be invalid.

14. **RESIGNATION, DISQUALIFICATION AND REMOVAL OF DIRECTORS**

(1) A Director shall cease to hold office and be deemed to have been removed as a Director of the Company with immediate effect, unless otherwise specified, if he:

(a) ceases to be a Director by virtue of any provisions of the Law or becomes prohibited by law from or disqualified by law from acting as a director; or

(b) resigns his office by instrument in writing under his hand left at the Office; or

(c) becomes bankrupt or makes any arrangement or composition with his creditors generally; or

(d) becomes physically or mentally incapable of acting as a Director, in the opinion of a registered medical practitioner by whom he is being treated; or

(e) is made subject to, whether by court order or otherwise, any order or provision of any law relating to mental health or incompetence; or

(f) is absent from Directors' meetings for a continuous period of six months without the consent of the Directors; or

(g) is removed by ordinary resolution of the Company.

(2) Unless specified otherwise in the instrument or resolution of appointment, a Director shall hold office until he resigns, is disqualified or is removed or deemed to be removed in accordance with Article 14(1).

15. **ALTERNATE DIRECTORS**

(1) Any Director may at his discretion and at any time and from time to time appoint either another Director or any other person (other than a person prohibited by law from or disqualified by law or by these Articles from being a director) to act as an alternate director in his place and may at his discretion remove from office an alternate director so appointed by him. Each director shall be entitled to appoint more than one alternate Director **PROVIDED THAT** only one alternate director shall act on the appointing Director's behalf at any one time.

(2) An alternate director shall (except as regards power to appoint an alternate and remuneration) be subject in all respects to the terms, conditions and provisions existing with reference to the Directors and each alternate director while so acting shall exercise and discharge all the functions, powers and duties as a Director of his appointor in such appointor's absence. In particular, without prejudice to the generality of the foregoing, an alternate director shall be entitled to receive the same notice of meetings of Directors and of all meetings of committees appointed pursuant to Article 18(6) hereof of which his appointor is a member as his appointor is entitled to receive and to attend and vote at any such meetings at which the Director appointing him is not personally present. An alternate director is not entitled to receive any remuneration from the Company for the services as alternate director.

(3) An alternate director shall ipso facto cease to hold office as such if his appointor ceases for any reason to be a Director or if and when the term of his appointment expires or if any of the circumstances described in Articles 14(1)(a), 14(1)(b), 14(1)(c), 14(1)(d), 14(1)(e) and 14(1)(f) hereof apply to him.

(4) Any appointment and any removal of an alternate director by his appointor shall be by notice in writing, signed by the Director making or revoking the appointment, to the Company and to the alternate director and left at the Office and shall have immediate effect unless otherwise stated.

(5) A Director is permitted to act as an alternate director for only one other Director and shall be entitled to vote for such other Director as well as on his own account and for the purpose of being counted in the quorum the Director shall be deemed to be two Directors when such quorum shall exceed two.

(6) If a Director is temporarily unable to act through disability or ill health the alternate director shall be entitled to sign any resolution in writing made by the Directors on behalf of the appointor.

(7) Save as otherwise provided in these Articles, an alternate director shall be deemed for all purposes to be a Director and shall alone be responsible for his own acts and defaults and the alternate director shall not be deemed to be the agent of the Director appointing him.

16. **EXECUTIVE DIRECTORS**

(1) The Directors may, by a majority of them, from time to time appoint one or more of their number to the office of chairman of the board of Directors, managing director or to any other executive office under the Company. Any such appointment may be made upon such terms and for such periods as the Directors may determine. Any Director so appointed must consent in writing to holding that office and the written consent from the Director and written notice of the appointment shall be sent to the Office. The appointment of any Director to an executive office shall terminate if he ceases to be a Director but without prejudice to any claim to damages for breach of any contract of service between him and the Company.

(2) The Directors may entrust to and confer upon any chairman, managing director or any director holding any other executive office any of the powers exercisable by the Directors, upon such terms and conditions

and with such restrictions as they think fit, and either collaterally with or to the exclusion of their own powers and may from time to time revoke, withdraw, alter or vary all or any of such powers.

17. **POWERS OF DIRECTORS**

(1) The business of the Company shall be managed by the Directors who may pay all expenses incurred in setting up and registering the Company and who may exercise and be vested with all the powers of the Company as are not by the Law, the Memorandum or these Articles or any directions given by special resolution required to be exercised by the Company in general meeting including without limitation the power and authority to represent the Company in all transactions relating to movable and immovable property and all other legal or judicial transactions, acts and matters before all courts of law. No alteration of the Memorandum or these Articles and no such direction shall invalidate any prior act of the Directors which would have been valid if that alteration had not been made or that direction had not been given. The powers given by this Article shall not be limited by any special power given to the Directors by these Articles. A meeting of the Directors at which a quorum is present may exercise all powers and discretions exercisable by the Directors.

(2) The Directors may, by power of attorney, mandate, authority given by resolution of the Directors or otherwise, appoint:

(a) any person to be the agent of the Company for such purposes and on such terms and conditions as they determine, with or without authority for the agent to delegate all or any of his powers; and

(b) any person to be the attorney or authorised signatory of the Company and on such terms and conditions as they determine,

PROVIDED THAT any power, discretion or authorities shall not exceed those vested in or exercisable by the Directors under these Articles. Such person does not need to be a Director or member of the Company.

(3) The Directors may provide benefits, whether by the payment of gratuities or pensions or by insurance or otherwise, for any Director who has held but no longer holds any executive office or employment with the Company or with any body corporate which is or has been a subsidiary of the Company or a predecessor in business of the Company or of any such subsidiary, and for any member of his family (including a spouse, a former spouse, a civil partner or former civil partner) or any person who is or who was dependent on him, and may (as well before as after he ceases to hold such office or employment) contribute to any fund and pay premiums for the purchase or provision of any such benefit.

18. **PROCEEDINGS OF DIRECTORS**

(1) Where there are no other Directors, a sole Director shall cause to be prepared written memoranda of the resolutions adopted by him from time to time in or about the transaction of the business of the Company which shall be entered in the books or registers maintained pursuant to the provisions of Article 18(11) hereof. Where there are two or more Directors the provisions of Articles 18(2) to 18(9) hereof shall apply to regulate the meetings and proceedings of the Directors.

(2) The Directors may meet together for the despatch of business, adjourn and otherwise regulate their meetings and proceedings as they think fit and the quorum necessary for the transaction of business shall be three. Where possible, meetings shall be held in Jersey unless otherwise determined by the board of Directors. A person, who holds office only as an alternate director shall, if his appointor is not present, be counted in the quorum. A Director who is also appointed an alternate director shall, if his appointor is not present, be counted as two Directors for the purpose of making a quorum of Directors when such quorum exceeds two so that, when the quorum is two, not fewer than two individuals shall be present. A meeting of the Directors at which a quorum is present shall be competent to exercise all powers and discretions for the time being exercisable by the Directors.

(3) Any Director may participate in a meeting of the Directors or in a committee thereof by means of a conference telephone, video or similar communications equipment whereby all the Directors participating in the meeting can hear and speak to each other throughout the meeting and the Directors participating in this manner shall be deemed to be present in person at such meeting for all the purposes of these Articles.

(4) A Director (or some other person on his behalf) may at any time (and the Secretary upon the request of a Director shall) convene a meeting of the Directors. Written or oral notice of a meeting of Directors shall be given **PROVIDED THAT** a Director may retrospectively waive the requirement to be given notice. Questions arising at any meeting shall be decided by a majority of votes and for the avoidance of doubt each Director shall be entitled to one vote except where such Director is also acting as an alternate director. In case of an equality of votes the chairman shall have a second or casting vote. A Director who is also an alternate director shall be entitled in the absence of his appointor to a separate vote on behalf of his appointor in addition to his own vote.

(5) If a chairman is appointed, he shall preside at every meeting of Directors unless he is unwilling or unable to do so. If no such chairman is elected or if at any meeting the chairman is not present or willing to

preside as chairman within five minutes, after the time appointed for the meeting, the Directors, by the majority of them, present shall choose one of their number to be chairman of such meeting.

(6) The Directors may delegate any of their powers to any committee consisting of one or more Directors and (if thought fit) one or more other persons, who are not Directors. The delegation may be on such terms as the Directors think fit, including a power for the committee to delegate to a sub-committee. Any committee or any sub-committee so formed shall in the exercise of the powers so delegated conform to any regulations that may be imposed upon it by the Directors. The meetings and proceedings of any such committee or any sub-committee shall be governed by the provisions of these Articles regulating the meetings and proceedings of the Directors, so far as the same are applicable and are not superseded by any regulations made by the Directors under this Article.

(7) All acts done by any meeting of the Directors or of a committee appointed by the Directors or of a sub-committee or by any person acting as a Director shall notwithstanding that it be afterwards discovered that there was some defect in the appointment of any such Directors or committee or sub-committee or person acting as aforesaid or that they or any of them were disqualified or had vacated office be as valid as if every such person had been duly appointed and was qualified and had continued to be a Director or a member of a committee appointed by the Directors or a sub-committee.

(8) It shall be presumed that any Director at a Directors' meeting or appointee at a committee or sub-committee meeting assented to any action taken at that meeting unless that Director's or appointee's dissent is entered into the minutes of the meeting or he has filed with the meeting before its conclusion a signed written dissent from the action taken or he has forwarded as soon as reasonably practicable following the conclusion of the meeting a signed dissent.

(9) A resolution in writing signed by all the Directors for the time being entitled to receive notice of a meeting of the Directors, or by all the appointees to a committee or a sub-committee appointed pursuant to Article 18(6) hereof, shall be as valid and effectual as if it had been passed at a meeting of the Directors or (as the case may be) at a meeting of such a committee or (as the case may be) at a meeting of such a sub-committee duly convened and held and may consist of several documents in the like form each signed by one or more Directors or (as the case may be) committee or (as the case may be) sub-committee appointees. Such resolution shall be deemed to have been passed on the day the last Director or committee or sub-committee appointee (as the case may be) signs. Such resolution shall be delivered to the Office of the Company or if the notice of resolution permits such documents may be delivered by electronic means as an electronic record to the address specified for that purpose in the notice of the resolution.

(10) The Directors shall be paid out of the funds of the Company their travelling and other expenses properly and necessarily expended by them in attending meetings of the Directors (or of committees appointed pursuant to Article 18(6) hereof) or the members or otherwise on the affairs of the Company. They shall also be paid by way of remuneration for their services such sum as the Directors shall determine (without recourse to the members) subject to any rates or limits (if any) fixed by the Company in general meeting. Such remuneration may include arrangements to pay health insurance, pension or death or sickness benefits whether to the Director or any of the Director's family (including a spouse or civil partner and a former spouse or former civil partner) or to any person who is dependent on the Director. If any of the Directors shall be appointed agent or is to perform extra services or is to make any special exertions or is to go or reside abroad for any of the purposes of the Company, the Directors may remunerate such Director therefor either by a fixed sum or by commission or participation in profits or otherwise or partly in one way and partly in another as they think fit. Such remuneration may be either in addition to or substitution for his remuneration hereinbefore provided.

(11) The Directors shall cause minutes or records to be made and kept in books or registers, provided for the purpose:

(a) of all appointments of Directors and Secretaries in accordance with the provisions of the Law;

(b) of all resolutions and proceedings of all meetings of the Company, class meetings of members and meetings of the Directors and of committees or sub-committees appointed pursuant to Article 18(6) hereof; and

(c) of the names of the persons present at each meeting referred to in Article 18(11)(b) hereof.

(12) Any minutes of a meeting, if purported to be signed by the chairman of the meeting or by the chairman of the next succeeding meeting, shall be evidence of the proceedings at such meeting.

(13) Minutes of meetings of the Directors (or any committee or sub-committee thereof) and written memoranda of a sole Director shall not be open to inspection by any member but shall be open to inspection by the Directors.

19. DIRECTORS' CONFLICTS OF INTEREST

(1) Subject to the provisions of the Law, a Director may be or become a director or other officer of or employed by or otherwise interested in any body corporate promoted by the Company or in which the Company may be interested as member or otherwise and no such Director shall be accountable to the

Company for any remuneration or other benefits received by him as a director or officer of or from his interests in such other body corporate unless the Company otherwise directs.

(2) Subject to the provisions of the Law and Article 19(3) hereof, no Director shall be disqualified by his office from contracting with the Company either as vendor, purchaser or otherwise nor shall any such contract or arrangement entered into by or on behalf of the Company in which any Director shall be in any way interested be avoided or liable to be set aside.

(3) A Director who has, directly or indirectly, an interest in a transaction entered into or proposed to be entered into by the Company or by a subsidiary of the Company or which the Company or a subsidiary has an interest in, which to a material extent conflicts or may conflict with the interests of the Company and of which he is aware shall disclose to the Company (by notice to the Directors at the first Directors' meeting at which such a transaction is to be considered or if the Director fails to give notice at such Directors' meeting, as soon as practicable after such meeting, by written notice delivered to the Secretary) the nature and extent of his interest. When disclosure of an interest is made to the Secretary, the Secretary shall inform the Directors of such disclosure and table the notice of the disclosure at the next meeting of the Directors after it is made. All disclosures of interests made shall be recorded in the minutes of the relevant meeting. Subject to complying with the above provisions, any such Director shall not be liable to account to the Company for any profit or gain realised by him on such a transaction.

(4) A notice in writing given to the Company by a Director that he is to be regarded as interested in a transaction with a specified person is sufficient disclosure of his interest in any such transaction entered into after the notice is given.

(5) Subject to the provisions of the Law and to the Director complying with Article 19(3) hereof, a Director may vote in respect of any such transaction and if he does so vote his vote shall be counted and he shall be capable of being counted towards the quorum at any meeting of the Directors at which any such transaction shall come before the Directors for consideration.

(6) Subject to the provisions of the Law, a Director (including an alternate Director) may hold any other office or position (whether for profit or otherwise) (other than the office of auditor) within the Company in conjunction with his office of Director for such period and on such terms (as to remuneration and otherwise) as the Directors may determine.

(7) Where proposals are under consideration concerning the appointment of two or more Directors to offices or employments with the Company or any body corporate in which the Company is interested, the proposals may be divided and considered in relation to each Director separately and (provided the Director is not for another reason precluded from voting) each of the Directors concerned shall be entitled to vote and be counted in the quorum in respect of each resolution except that concerning the Director's own appointment.

(8) Subject to the provisions of the Law, any Director may act by himself or his firm in a professional capacity for the Company and he or his firm shall be entitled to remuneration for professional services as if he were not a Director.

20. SEALS AND EXECUTION

(1) The Company may if the Directors so determine have a Seal. The Company name shall be engraved in legible characters on the Seal. The Directors shall provide for the safe custody of the Seal which shall only be used by the authority of the Directors or of a committee of the Directors authorised by the Directors in that behalf and every instrument to which the Seal shall be affixed shall, unless otherwise determined by resolution of the Directors, be signed by one Director (or his alternate) whether as a deed or otherwise.

(2) Where the Company has a Seal and engages in business outside the Island of Jersey the Company may if the Directors so determine have for use in any country territory or place outside Jersey an official seal (a **"Branch Seal"**) which shall be a facsimile of the Seal with the addition on its face either of the words "Branch Seal" or the name of the country territory or place where it is to be used and which shall be affixed in the same manner as the Seal or as provided under the Law.

(3) In addition, where the Company has a Seal, the Company may if the Directors so determine have an official seal for use for sealing securities issued by the Company and for sealing documents creating or evidencing securities so issued (a **"Securities Seal"**) which shall be a facsimile of the Seal with the addition on its face of the words "Securities" and which shall be affixed in the same manner as the Seal or as provided under the Law.

(4) Where the Company has a Seal, a Branch Seal and a Securities Seal it may if the Directors so determine, have one or more duplicates of the Seal, the Branch Seal and/or the Securities Seal all of which shall be affixed in the same manner as the Seal or as provided under the Law.

(5) The Directors may authorise the execution of a document, whether as a deed or otherwise, in any way including under Seal.

(6) The Directors may determine that the Seal, the Branch Seal or the Securities Seal may be affixed by some other method or system of reproduction and need not be manually affixed and that a signature required by these Articles may be a mechanical or electronic signature and need not be manual.

(7) A document remains valid and duly executed and delivered by or on behalf of the Company notwithstanding that at the date of delivery the Director, Secretary, officer or person who signed the document or affixed the Seal for and on behalf of the Company no longer is the Secretary or holds that office and authority on behalf of the Company.

(8) A Director, Secretary or person appointed by the Directors for the purpose shall be vested with the authorisation to authenticate any document affecting the constitution of the Company and any resolution passed by the Shareholders or the Directors and any books, records, documents and accounts relating to the business of the Company and to certify copies or extracts as true copies or extracts. If the books, records, documents or accounts are at a place of business of the Company other than the Office then the local manager of the Company having custody of such books, records, documents or accounts shall be deemed to be authorised by the Directors as aforesaid.

21. **SECRETARY**

The Secretary shall be appointed by the Directors upon such terms and subject to such conditions as they may think fit and any Secretary so appointed may be removed by them.

22. **DIVIDENDS AND RESERVE**

(1) Subject to the provisions of the Law and these Articles, the Company in general meeting may by ordinary resolution declare dividends in accordance with the respective rights of the members but no dividend shall exceed the amount recommended by the Directors. Any such declared dividend, subject to it not exceeding the amount recommended by the Directors, shall be a debt owed by the Company due on the date that such dividend is declared to be payable or, if no date is specified, immediately.

(2) Subject to the provisions of the Law and any special rights attaching to any shares, the Directors may, from time to time, without the sanction of the members pay to the members such interim dividends as the Directors may determine. Any interim dividend shall not be a debt owed by the Company until such time as payment of the dividend is resolved to be made. If the share capital is divided into different classes, the Directors may pay interim dividends on shares which confer deferred or non-preferred rights with regard to dividend as well as on shares which confer preferential rights with regard to dividend, but no interim dividend shall be paid on shares carrying deferred or non-preferred rights if, at the time of payment, any preferential dividend is in arrears. The Directors may also pay, at intervals settled by them, any dividend payable at a fixed rate if it appears to them to be justified. Provided the Directors act in good faith, they shall not incur any liability to the holders of shares conferring preferred rights for any loss they may suffer by the lawful payment of an interim dividend on any shares having deferred or non-preferred rights.

(3) No dividend shall be paid otherwise than in accordance with the provisions of the Law.

(4) Subject to any rights or privileges for the time being attached to any shares in the capital of the Company having preferential, deferred or other special rights in regard to dividends, all dividends paid upon the shares of the Company shall be paid in proportion to the amounts paid up thereon respectively otherwise than in advance of calls.

(5) All dividends shall be apportioned and paid pro rata according to the amounts paid up on the shares during any portion or portions of the period in respect of which the dividend is paid except that if any share is issued on terms providing that it shall rank for dividend as if paid up (in whole or in part) as from a particular date (either past or future) such share shall rank for dividend accordingly.

(6) The Directors may before recommending any dividend set aside such sums as they think proper as a reserve or reserves which shall at their discretion be applicable for any purpose and pending such application may at their discretion either be employed in the business of the Company or be invested in such investments as the Directors may from time to time think fit. The Directors may also without placing the same to reserve carry forward any profits which they may think prudent not to divide.

(7) The Directors may deduct from any dividend or any other amount payable to any member all such sums of money (if any) as may be due and payable by him to the Company on account of calls or otherwise in relation to any share.

(8) When declaring a dividend, whether final or interim, the Company may, upon the recommendation of the Directors, direct that payment shall be satisfied wholly or partly by the distribution of assets. If any difficulty arises with regards to the distribution, the Directors may settle the same as they think fit, fix the value of any asset for distribution (taking such advice as they deem necessary) and may determine that cash shall be paid to any member upon the footing of the value so fixed in order to adjust the rights of members and may vest any assets in trustees upon trust for the persons entitled to the dividend as may seem expedient to the Directors and generally may make such arrangements or the allotment, acceptance and sale of such specific assets or any part thereof and otherwise as they think fit.

(9) If several persons are registered as joint holders of any share any one of them may give effectual receipts for any dividend payable on the share.

(10) Notice of any dividend that may have been declared shall be given in manner hereinafter mentioned to the person entitled to share therein.

(11) No dividend shall bear interest against the Company.

(12) Unless otherwise directed any dividend or other moneys payable may be paid by cheque or warrant made to the order of the member holding that share or to such other person as the person or persons so entitled may in writing direct and sent through the post to the registered address of the member entitled or by wire transfer to a nominated bank account or in the case of joint holders (where two or more persons are registered as holders of the share or are jointly entitled to it by reason of the death, incapacity or bankruptcy of the member) to that one whose name stands first on the Register in respect of their joint holding and every cheque, warrant or wire transfer so sent shall be made payable to the order of the person to whom it is sent and the Company shall not be responsible for any loss in transmission and payment by cheque, warrant or wire transfer as provided herein shall be a good discharge to the Company. Every such cheque or warrant shall be sent at the risk of the person entitled to the money represented thereby.

(13) If a dividend cannot be paid to a member or remains unclaimed within six weeks after it was declared or both, the Directors may transfer such funds into a separate account in the Company's name. The Company shall not be constituted a trustee in respect of that account. The dividend shall remain as a debt due to the member.

(14) Any dividend which remains unclaimed for ten years from the date it became due and payable shall, if the Directors resolve in general meeting, be forfeited and cease to be a debt due to the member.

23. **CAPITALISATION OF RESERVES ETC.**

(1) The Directors, subject to the rights attaching to the shares, may at any time and from time to time pass a resolution that any sum not required for the payment or provision of a fixed dividend and (a) for the time being standing to the credit of any reserve fund of the Company including premiums received on the issue of any shares or debentures of the Company, or (b) being undivided profits in the hands of the Company be capitalised and that such sum be appropriated as capital to and amongst the members in the shares and proportions in which they would have been entitled thereto if the same had been distributed by way of dividend and in such manner as the resolution may direct.

(2) The Directors shall, in accordance with such resolution referred to in Article 23(1) above apply such sum in paying up in full or in part (where permitted by the Law) any unissued shares or debentures of the Company on behalf of such members and appropriate such shares or debentures to and distribute the same credited as fully paid up or partly paid up (where permitted by the Law) amongst them in the proportions aforesaid in satisfaction of their shares and interests in the said capitalised sum or shall apply such sum or any part thereof on behalf of such members in paying up the whole or part of any uncalled balance which shall for the time being be unpaid in respect of any issued shares or debentures held by them.

(3) Where any difficulty arises in respect of any such distribution the Directors may settle the same as they think expedient and in particular they may fix the value for distribution of any fully paid up shares or debentures, make cash payments to any members on the footing of the value so fixed in order to adjust rights and vest any such shares or debentures in trustees upon such trusts for or for the benefit of the persons entitled to share in the appropriation and distribution as may seem just and expedient to the Directors.

24. **ACCOUNTS**

(1) The Directors shall cause accounting records to be kept which are sufficient to show and explain the Company's transactions and are such as to disclose with reasonable accuracy at any time the financial position of the Company at that time and enable the Directors to ensure that any accounts prepared by the Company comply with the requirements of the Law.

(2) The accounting records shall be kept at the Office or at such other place or places as the Directors think fit and shall always be open to the inspection of the Directors, the Secretary and any liquidator of the Company. No member shall have any right of inspecting any accounting records or other books or documents of the Company unless authorised by the Directors or permitted by ordinary resolution of the Company or the member is permitted by Law. Subject to the provisions of the Law, such accounting records shall be preserved for a period of at least ten years from the date on which they are made.

(3) The Directors shall determine and may vary the accounting reference date for the Company by resolution of the Directors and shall cause to be prepared accounts for the Company for periods of not more than eighteen months (a) beginning on the date of incorporation of the Company or (b) if the Company has previously prepared a profit and loss account beginning at the end of the period covered by the most recent accounts. Such accounts shall be prepared in compliance with the requirements of the Law.

(4) The Company's accounts shall be approved by the Directors and signed on their behalf by at least one Director.

(5) Where these Articles provide that the Company is not required to hold annual general meetings, the Company shall not be obliged to lay the accounts for any financial period or a copy of any auditor's report on them before a general meeting of the Company unless, in accordance with Article 105(9) of the Law, a member of the Company requires the Company to do so.

(6) Unless required by Law or by ordinary resolution, the Company shall not be obliged to appoint an auditor to examine and report upon its accounts. Where an ordinary resolution so requires, the Company must appoint an auditor to examine and report upon its accounts.

25. **NOTICES**

(1) Any notice to be given to or by any person pursuant to these Articles shall be in writing save that a notice calling a meeting of the Directors need not be in writing.

(2) A notice may be given by the Company to any member personally or by leaving it at his registered address or by sending it either by post to him at his registered address or to the address supplied by him to the Company for the giving of notices to him or by sending it by electronic communication to him at any address supplied by him to the Company specifically for the purpose of serving formal notices on him.

(3) A written notice shall be signed when it is autographed by or on behalf of the giver, or is marked in such a way as to indicate execution or adoption by the giver.

(4) A member present, either in person or by proxy, at any meeting of the Company or of the holders of any class of shares in the Company shall be deemed to have received due notice of the meeting and, where requisite, of the purposes for which it was called. Every person who becomes entitled to a share shall be bound by any notice in respect of that share which, before his name is entered in the Register has been duly given to a person from which he derives his title.

(5) Any notice shall be deemed to have been served in the case of giving it personally to the member at the time and date of delivery, in the case of leaving it at the member's registered address at the time and date of delivery and in the case of posting in the Island of Jersey to an postal address in the Island on the second day following the date of posting and in the case of posting in the Island to a postal address outside the Island on the fifth day following the date of posting. In the case of service of any notice by electronic communication such notice shall be deemed to have been served immediately on transmission of such notice.

(6) In proving service of any notice by post it shall be sufficient to prove that the notice was properly addressed stamped and posted. In the case of service of any notice by facsimile it shall be sufficient to prove receipt by the sender of a confirmed facsimile transmission report. In the case of service of any notice by any means of electronic communication other than facsimile it shall be sufficient to prove that such communication was transmitted by the sender if an electronic record is kept demonstrating the time, date and contents of the transmission and if no notification of failure to transmit is received by the sender.

(7) A notice may be given by the Company to the joint holders of a share by giving notice to the joint holder named first in the Register in respect of the share.

(8) A notice may be given to the guardian of a minor member or to the curator or guardian or other legal representative appointed by the Royal Court of Jersey or other person appointed by a court of competent jurisdiction to administer to the affairs of any member of unsound mind or to the persons entitled to a share in consequence of the death, incapacity or bankruptcy of a member by sending it through the post in a prepaid letter addressed to such persons by name or by the title of guardian or curator appointed by the Royal Court of Jersey or other person appointed by a court of competent jurisdiction to administer to the affairs of such member of unsound mind or representatives of the deceased or trustee of the bankrupt or by any like description at the address supplied for the purpose by such persons. Until such an address has been supplied, a notice may be given in any manner in which it might have been given if the member in question had not been a minor or of unsound mind, or if the death, incapacity or bankruptcy of the member in question had not occurred.

(9) Subject to the provisions of these Articles, notice of every general meeting shall be given to every member, to each Director, any appointed auditor and to such other persons as the Directors shall at any time and from time to time determine.

(10) If on three consecutive occasions any notice, document or other information has been sent to any member at his registered address or his address for the service of notices (by electronic means or otherwise) but has been returned undelivered, such member shall not be entitled to receive notices, documents or other information from the Company until he shall have communicated with the Company and supplied in writing a new address for the service of notices or has informed the Company of an address for the service of notices and the sending or supply of documents and other information in electronic form. For these purposes, any notice, document or other information served, sent or supplied by post shall be treated as returned undelivered if the notice, document or other information is served, sent or supplied back to the

Company and a notice, document or other information served, sent or supplied in electronic form shall be treated as returned undelivered if the Company receives notification that the notice, document or other information was not delivered to the address to which it was served, sent or supplied.

(11) If at any time by reason of the suspension, interruption or curtailment of postal services within Jersey the Company is unable to effectively convene a general meeting by notices sent through the post, the Company need only give notice of a general meeting to those members with whom the Company can communicate by electronic means and who have provided the Company with an address for this purpose.

(12) The provisions in the Articles regarding the delivery of written resolutions of Directors and written resolutions of members shall prevail.

(13) Notwithstanding the provisions of these Articles, any notice to be given by the Company to a Director or to a member may be given in any manner agreed in advance by any such Director or member.

(14) The Company may at any time and in its sole discretion choose to serve, send or supply notices, documents or other information in hard copy form alone to some or all of the members.

26. **RECORD DATES**

(1) Notwithstanding any of the provisions of these Articles, but without prejudice to the rights attached to any shares and subject always to the Law, the Company may by ordinary resolution specify any date or the Directors may specify a date (the "**record date**") as the date at the close of business on which persons registered as the holders of shares or other securities shall be entitled to receipt of any dividend, distribution, interest, allotment, issue, notice, information, document or circular. Such record date may be before or on the date on which the dividend, distribution, interest, allotment, issue, notice, information, document or circular is declared, made, paid, given or served.

(2) In the absence of a record date being fixed, entitlement to any dividend, distribution, interest, allotment, issue, notice, information, document or circular shall be determined by reference to the date on which the dividend is declared, the distribution allotment or issue is made or the notice, information, document or circular made, given or served.

27. **WINDING UP**

(1) Subject to the claims of any secured creditors and to the provisions of any enactment as to preferential payments, the Company's property shall on winding up be realised and applied in satisfaction of the Company's liabilities pari passu and subject thereto any surplus shall then be distributed amongst the members according to their rights and interests in the Company. Subject to the rights of the holders of shares issued upon special conditions if the assets available for distribution to members shall be insufficient to pay the whole of the paid up capital such assets shall be shared on a pro rata basis amongst members by reference to the number of fully paid up shares held by each member respectively at the commencement of the winding up.

(2) If the Company shall be wound up the liquidator or where there is no liquidator the Directors may with the sanction of a special resolution and any other sanction required by the Law divide amongst the members in specie any part of the assets of the Company or vest the same in trustees upon such trusts for the benefit of the members as the liquidator or the Directors (as the case may be) with the like sanction shall think fit. No member shall be obliged to accept any asset if a liability attaches to it.

28. **INDEMNITY**

(1) In so far as the Law allows, every Secretary, agent, servant and employee of the Company shall be indemnified by the Company against, and it shall be the duty of the Directors to pay out of the funds of the Company, the costs, charges, losses, liabilities, damages and expenses which any such person may incur in the course of the discharge by him of his duties, powers, authorities or discretions as Secretary, agent, servant or employee of the Company as the case may be **PROVIDED THAT** this indemnity shall not be applicable in circumstances where any such person has incurred such costs, charges, losses, liabilities, damages and expenses through his own fraud, wilful default, wilful misconduct, breach of duty or trust, failure to exercise due care and diligence or negligence.

(2) In so far as the Law allows, every present or former Director (including alternate directors), any other officer of the Company and their personal representatives shall be indemnified out of the assets of the Company against any loss, action, proceeding cost, charge, expense, damage or liability incurred or sustained by him by reason of being or having been a Director (including alternate directors) or any other such officer and their personal representatives **PROVIDED THAT** this indemnity shall not be applicable in circumstances where any such person has incurred such costs, charges, losses, liabilities, damages and expenses through his own fraud, wilful default, wilful misconduct, breach of duty or trust, failure to exercise due care and diligence or negligence.

(3) The Directors are empowered to arrange for the purchase and maintenance in the name and at the expense of the Company of insurance cover for the benefit of any Director or former Director or officer or former officer of the Company, a Secretary and any agent, servant or employee of the Company against any liability which is incurred by any such person by reason of the fact that he is or was a Director, an officer of the Company, a Secretary or an agent, servant or employee of the Company.

(4) To the extent permitted by law, the Company may by special resolution release any existing or former Director (including alternate director), Secretary or other officer of the Company from liability for any loss or damage or right to compensation which may arise out of or in connection with the execution or discharge of the duties, powers, authorities or discretions of his office, but there may be no release from liability arising out of or in connection with that person's own dishonesty.